

Rahul Tiwari v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 16 April 2019 · WRIT - C No. - 13189 of 2019 · **Writ dismissed; relegated to CGRF under Clause 7.10.**

HEADNOTE

A writ petitioner who asserts that he is not the actual electricity consumer must raise his grievances before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The Allahabad High Court dismissed the petition on the ground of that statutory alternative remedy.

FACTUAL SUMMARY

Rahul Tiwari filed Writ-C No. 13189 of 2019 before the Allahabad High Court against the State of Uttar Pradesh and others in an electricity dispute. He stated that he was not the actual consumer of the electricity. After hearing counsel for the petitioner and for respondent nos. 3 to 5, the Division Bench of Bharati Sapru and Vivek Varma, JJ. dismissed the petition on 16 April 2019, pointing him to the Consumer Grievance Redressal Forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as statutory alternative remedy

HOLDING

A person who asserts that he is not the actual consumer of electricity may raise his grievances before the Consumer Grievance Redressal Forum in accordance with Clause 7.10 of the U.P. Electricity Supply Code, 2005; a writ petition is liable to be dismissed on the ground of that statutory alternative remedy. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Even a petitioner who claimed he was not the actual consumer was directed to the CGRF under Clause 7.10; the writ was dismissed for statutory alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS THE ACTUAL CONSUMER OF THE ELECTRICITY CONNECTION IN DISPUTE

The Court did not examine that assertion on merits and dismissed the writ for alternative remedy. ¶ 1